МОНГОЛ УЛСЫН
ХҮНИЙ ЭРХИЙН ҮНДЭСНИЙ
КОМИСС

15140 Улаанбаатар хот, Чингэлтэй дүүрэг,
Тусгаар тогтнолын талбай, Засгийн газрын XI байр,
Утас: 26 29 31, Факс: (976-11) 32 02 84,
И-мэйл: info@nhrcm.gov.mn, Вэбсайт: www.nhrcm.gov.mn

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ХУУЛЬ ЗҮЙ, ДОТООД ХЭРГИЙН
САЙД Х.НЯМБААТАР ТАНАА

Танай яамнаас боловсруулсан Хүний хувийн мэдээлэл хамгаалах тухай хуулийн төсөлд саналаа хавсралтаар хүргүүлж байна.

Хавсралт 15 хуудастай.

Хүндэтгэсэн,

ДАРГЫН ҮҮРГИЙГ ТҮР ОРЛОН
ГҮЙЦЭТГЭГЧ, ГИШҮҮН Ж.ХУНАН

Хүний эрхийн Үндэсний Комиссын
2021 оны 3 дугаар сарын 16-ны өдрийн
1/337 дугаар албан бичгийн хавсралт

1. Хувь хүний нууцын тухай хуулийн 2 дугаар зүйлд "Хувь хүний нууц" гэж "Монгол Улсын болон гадаадын иргэн, харъяалалгүй хүн Монгол Улсын хууль тогтоомжид нийцүүлэн нууцалсан бөгөөд задруулбал тухайн хүний хууль ёсны ашиг сонирхол, нэр төр, алдар хүндэд илтэд хохирол учруулж болзошгүй мэдээ, баримт бичиг, биет зүйлийг хэлнэ" гэж тодорхойлжээ. Хүний хувийн мэдээлэл хамгааллын тухай хуулийн төсөл үндсэндээ хувийн мэдээллийг хамгаалах хүрээнд боловсруулагдсан бөгөөд биеийн, хувийн орон зай ба эд зүйлийн болон хүнийг мэдээллийг цуглуулахгүйгээр мөрдөн мөшгихөөс хамгаалах зохицуулалт нь хангалттай биш байна. Хуулийн төслийн 7 дугаар бүлэгт мэдээллээр өргөн хүрээтэй хамгаалагдсан орон зай зөвхөн дууны, дүрсний, дуу-дүрсний бичлэгийн системийн талаар зохицуулжээ. Хувь хүний нууцын тухай хуульд зарчим тунхагласан шинжтэй боловч хамгаалсан орон зай, харилцаа нь Хүний хувийн мэдээлэл хамгааллын тухай хуулийн төсөл тусгагдсанаас өргөн цар хүрээтэй байна.

   Иймд хуулийн төсөлд хүний захидал харилцаа, эрүүл мэнд, хөрөнгө, гэр бүлийн нууцтай холбоотой хувийн орон зай, харилцаа, эрх ашгийг өргөн хүрээтэй тодорхойлж, хамгаалах, ингэхдээ хууль хоорондын давхардал зөрчлийг арилган, 1995 онд батлагдсан Хувь хүний нууцын тухай хуулийг хүчингүй болгох; Хувь хүний нууцын тухай хуулийг хүчингүй болгох тохиолдолд хуулийн төслийн 4 дүгээр зүйлийн 4.1.2-т "хүний эмзэг мэдээлэл гэж Хувь хүний нууцын тухай хуулийн 4.1-д заасан..." хэмээн иш татсаныг хасах;

2. Комисс нь Монгол Улсын Хүний эрхийн Үндэсний Комиссын тухай хуулийн 7 дугаар зүйлийн 7.1.1-д заасан чиг үүргийн хүрээнд Монгол Улс дахь хүний эрх, эрх чөлөөтэй холбоотой аливаа асуудлаар санал, зөвлөмж гаргаж, эрх бүхий байгууллага, албан тушаалтан, хуулийн этгээдэд хүргүүлдэг бөгөөд энэ хүрээнд гаргасан санал зөвлөмж нь хүний эрх, эрх чөлөө зөрчигдөж болзошгүй асуудал болон урьдчилан сэргийлэх чиглэлээр гаргадаг тул хариу шаарддаггүй. Мөн хуулийн 27 дугаар зүйлийн 27.1 дэх хэсэгт заасны дагуу Комиссын гишүүний шаардлага, зөвлөмж гомдол, мэдээлэл шийдвэрлэх, хяналт шалгалт хийхтэй холбоотойгоор гаргадаг бөгөөд үг шаардлага, зөвлөмжийг хүлээн авсан байгууллага, албан тушаалтан, хуулийн этгээд заавал биелүүлэх үүрэгтэй байдаг. Иймд төслийн 23 дугаар зүйлийн 23.1.2-т "...холбогдох байгууллагуудад зөвлөмж, шаардлага хүргүүлэх" гэснийг "...холбогдох байгууллагуудад Комиссын гишүүний зөвлөмж, шаардлага хүргүүлэх" гэж өөрчлөх;

3. Олон улсын хүний эрхийн хуулийн тогтоомжид заасан төрийн үндсэн чиг үүрэг нь хүний эрх, эрх чөлөөг хүндэтгэх, хамгаалах, хангах явдал юм. Хуулийн төслийн 23 дугаар зүйлийн 23.1.3-т "хүний эмзэг мэдээлэл цуглуулах, боловсруулах, ашиглах, хамгаалах чиглэлээр холбогдох байгууллагуудад мэдээлэл өгөх, хууль зүйн туслалцаа үзүүлэх" хэмээн Комиссоос хэрэгжүүлэхээр заасан хууль зүйн туслалцаа үзүүлэх нь Засгийн газрын гүйцэтгэх чиг үүрэг болно. Иймээс хуулийн төсөлд юун түрүүнд төрийн холбогдох механизмд хандаж хууль зүйн туслалцаа авах, зөрчлийг тогтоолгох, эрх, эрх чөлөөгөө сэргээлгэх зохицуулалтыг бий болгох шаардлагатай. Харин төрийн байгууллага, албан тушаалтан зөрчигдсөн эрхийг нь сэргээхгүй, хүний эрх, эрх чөлөөг хангах, хамгаалах үүргээ зохих ёсоор биелүүлэхгүй, өөрөөр хэлбэл төрийн механизм хангалттай ажиллахгүй тохиолдолд Монгол Улсын Хүний эрхийн Үндэсний Комиссын тухай хуульд

заасны дагуу Комисст гомдол, мэдээлэл гаргаж, шийдвэрлүүлдэг байх зарчмаар хуулийн төслийн зохицуулалтыг илүү тодорхой болгох нь зохимжтой байна. Иймээс хуулийн төслийн 24 дугаар зүйлд "хүний эмзэг мэдээлэл цуглуулах, боловсруулах, ашиглах, хамгаалах чиглэлээр холбогдох мэдээлэл өгөх, хууль зүйн туслалцаа үзүүлэх" чиг үүргийг зааж, хуулийн төслийн 23.1.3-ийг хасах;

4. Хувийн хэвшлийн байгууллага болон бусад гуравдагч этгээдээс хувийн нууц, мэдээллийн эрх чөлөөг хязгаарласан үйлдлийг мэргэжлийн хяналт, харилцаа холбоо, шударга өрсөлдөөн зэрэг захиргааны байгууллагаас урьдчилсан шатны журмаар, дараа нь шүүхээс холбогдох хууль тогтоомжийн дагуу эцэслэн шийдвэрлэдэг байх нь хүний эрхийг хамгаалах тогтолцооны нэгдмэл байдал талаасаа оновчтой юм. Иймд хуулийн төсөлд аж ахуйн нэгж, байгууллага, гуравдагч этгээдээс хувийн нууц, мэдээллийн эрх чөлөөг хязгаарласан үйлдлийг зөрчсөн гэж үзвэл эдгээр байгууллагад гомдол гаргах эрхтэй байх зохицуулалтыг нэмж тусгах, хуулийн төслийн 23.1.2-ийн өмнө "төрийн байгууллагаас ..." гэж нэмэх;

5. Хүний эрхийг хангах, сахин хамгаалах үндэсний байгууллагуудын бүрэн эрх, үйл ажиллагаа, эрх зүйн байдлын талаарх наад захын хэм хэмжээг тогтоосон "Парисын зарчим"-ын үзэл баримтлал, агуулгад нийцүүлэн УИХ-аас Монгол Улсын Хүний эрхийн Үндэсний Комиссын тухай хуулийн баталсан. Уг зарчимд зааснаар Хүний эрхийн үндэсний байгууллагууд нь түүний үйл ажиллагааг тасралтгүй явуулахад зайлшгүй шаардлагатай нөөцтэй, тухайлбал, хүрэлцэхүйц санхүүжилттэй байвал зохино. Ийм санхүүжилтын зорилго нь үндэсний байгууллага өөрийн ажилтнуудтай байх, байртай байх боломжийг олгож, Засгийн газраас хараат бус байж, түүний хараат бус байдалд нөлөөлж болох санхүүгийн хяналтаас ангид байхад оршдог. Мөн Хүний эрхийн үндэсний байгууллага нь эрх зүйн статусаар дамжуулж хараат бус байх, бүтэц бүрэлдэхүүнээр дамжуулж хараат бус байх, үйл ажиллагаагаар дамжуулж хараат бус байх зарчмыг баримталдаг. Тодруулбал "Парисын зарчим" ёсоор Хүний эрхийн үндэсний байгууллагууд нь хууль тогтоох, гүйцэтгэх эрх мэдлээс хараат бусаар үйл ажиллагаагаа явуулах, тэр дундаа Засгийн газраас хараат бус байж, санхүүгийн хувьд баталгаатай байхад чиглэдэг. Энэ нь хүний эрхийн үндэсний байгууллага хүний эрхийг хамгаалах, хөхиүлэн дэмжихтэй холбоотой асуудлаар УИХ, Засгийн газар болон төрийн бусад байгууллагад санал, зөвлөмж, шаардлага, илтгэл хүргүүлэх бүрэн эрхээ хэрэгжүүлэх баталгаа болдог.

   Хүний нууц, мэдээлэл авах эрхийг зөрчсөн асуудлаар Комиссын хараат бусаар, хөндлөнгийн хяналтын тогтолцоог бүрдүүлэхэд нэн тэргүүнд хүний нөөц, мэргэшсэн чадавхтай байх нь чухал юм. Одоогоор Хүний эрхийн Үндэсний Комиссын Тамгын газарт мэдээлэл технологийн нарийн мэдлэг ойлголт, чадавхтай мэргэшсэн албан хаагчдын нөөц, хүрэлцээ байхгүй. Комиссын бүтэц, зохион байгуулалтын хувьд хүний нууц, мэдээлэл авах эрхийн талаарх гомдлыг шалгаж шийдвэрлэдэг, мониторинг хийдэг нэгжтэй байх асуудлыг шийдвэрлэсний үндсэн дээр энэ эрхийн хэрэгжилтэд хөндлөнгийн хяналт тавих, хараат бус хяналтын тогтолцоо бүрдэх боломжтой гэж үзэж байна. Иймээс дагалдах хуулийн төслүүдэд Монгол Улсын Хүний эрхийн Үндэсний Комиссын тухай хуульд нэмэлт, өөрчлөлт оруулахаар заах;

6. Монгол Улсын Хүний эрхийн Үндэсний Комиссын тухай хуулийн 16 дугаар зүйлийн 16.3.2-т "Монгол Улс дахь хүний эрх, эрх чөлөөний байдлын талаарх илтгэлийн бүтэц, агуулга, илтгэлээр өгөх санал, зөвлөмжийг хэлэлцэж, шийдвэрлэх" гэж Комиссын чиг

үүрэгтэй хамааралтай асуудлаар Комиссын хуралдаанаараа шийдвэрлэх асуудлыг зохицуулсан. Хүний эрхийн үндэсний байгууллага нь хүний эрхийн ерөнхий болон тусгайлсан асуудал үндэсний хэмжээнд ямар байдалтай байгаа талаар зөлжит илтгэл бэлтгэж, илтгэлдээ Хүний эрхийн үндэсний байгууллагаас тухайн жилд мандатаа хэрэгжүүлэхээр явуулсан үйл ажиллагааны хүрээнд хяналт шалгалт, судалгаа шинжилгээ, шийдвэрлэсэн өргөдөл гомдолд үндэслэн анхаарвал зохих аливаа хүний эрхийн асуудлаар өөрийн байр суурь, зөвлөмж, саналыг тусгадаг.

Иймд хуулийн төслийн 23 дугаар зүйлийн 23.1.4-т "Монгол Улс дахь хүний эрх, эрх чөлөөний байдлын талаарх илтгэлд мэдээлэл хамгаалах үйл ажиллагаа, гарсан зөрчил, мэдээллийн эзний эрхийн хэрэгжилтийн талаар тусгаж, жил бүрийн эхний улиралд багтаан Улсын Их Хуралд тайлан хүргүүлэх" гэж заасныг "Монгол Улс дахь хүний нууц, мэдээлэл авах эрхийн хэрэгжилтийн төлөв байдал, гомдол хянан шийдвэрлэлтийн талаарх Монгол Улсын Хүний эрхийн Үндэсний Комиссын илтгэлийг 2 жил тутам УИХ-д өргөн мэдүүлэх" гэж өөрчлөх;

7. Монгол Улсын Хүний эрхийн Үндэсний Комиссын тухай хуулийн 7 дугаар зүйлийн 7.1.2-д "хууль тогтоомж, захиргааны байгууллагын шийдвэрийн төсөл Монгол Улсын Үндсэн хууль, олон улсын гэрээ, хүний эрхийн үндсэн зарчимд нийцэж байгаа эсэх талаар санал гаргах", мөн зүйлийн 7.1.4-т "хүний эрх, эрх чөлөөг хангахтай холбогдсон хууль тогтоомжийг боловсронгуй болгох тухай саналаа хууль санаачлах эрх бүхий байгууллага, албан тушаалтанд уламжлах" гэж тус тус заасан. Иймд хуулийн төслийн 9 дүгээр зүйлийн 9.3 дахь хэсэгт "Хүний эмзэг мэдээлэл цуглуулах, боловсруулах, ашиглах үйл ажиллагаанд баримтлах журмыг Хүний эрхийн Үндэсний Комиссын саналыг үндэслэн Монгол Улсын Засгийн газар батална" гэснийг "Хүний эмзэг мэдээлэл цуглуулах, боловсруулах, ашиглах үйл ажиллагаанд баримтлах журмыг Засгийн газар батална", мөн зүйлийн 9.4 дэх хэсэгт "Энэ хуулийн 9.3-д заасан журмыг батлахад Хүний эрхийн Үндэсний Комиссын саналыг авна" гэж өөрчлөх; Мөн хуулийн төслийн 22 дугаар зүйлийн 22.3 дахь хэсэгт "Энэ хуулийн 22.1-д заасан үнэлгээ хийх аргачлал, журмыг Хүний эрхийн Үндэсний Комиссын саналыг үндэслэн харилцаа холбоо, мэдээллийн технологийн асуудал хариуцсан төрийн захиргааны байгууллага болон Харилцаа холбооны зохицуулах хороо хамтран батална" гэснийг "Энэ хуулийн 22.1-д заасан үнэлгээ хийх аргачлал, журмыг харилцаа холбоо, мэдээллийн технологийн асуудал хариуцсан төрийн захиргааны байгууллага болон Харилцаа холбооны зохицуулах хороо хамтран батална", мөн хуулийн 22.4 дэх хэсэгт "Энэ хуулийн 22.3-д заасан журмыг батлахад Хүний эрхийн Үндэсний Комиссын саналыг авна" гэж өөрчлөх;

8. Хувийн мэдээллийн болон мэдээлэл авах эрхийн талаарх хуулийн хамгийн чухал зохицуулалт нь хувь хүн өөрийнх нь талаар төрд ямар мэдээлэл байгааг мэдэх, өөрийнхөө талаарх мэдээллийг засах, шинэчлэх, устгах зэргээр удирдах, түүнчлэн гуравдагч этгээдээс хувь хүний талаарх мэдээлэлд нэвтэрсэн тохиолдолд хэн ямар зорилгоор нэвтэрснийг мэдэх эрх юм. Хуулийн төсөлд энэ талаарх зохицуулалт байгаа боловч зарчмын хувьд тунхаглалын шинжтэй, процессын хэм хэмжээг тогтоосон зохицуулалт хангалтгүй байна. Энэ талаар Австрали Улсын хувьд Хувийн нууцийн тухай болон Мэдээллийн эрх чөлөөний тухай хуулиудын аль алинаар зохицуулж байна. Иймд бусад улс орнуудын хуулиудыг харьцуулан судалж, хуулийн төсөлд энэ төрлийн зохицуулалтыг шинээр нарийвчлан тусгах; (Австрали Улсын хуулийн зохицуулалтын англи хэл дээрх хувилбарыг хавсаргав)

9. Энэ хуулийг зөрчсөн тохиолдолд хувь хүний мэдээллийг нийтэд зөвшөөрөлгүй тараах зөрчил, гэмт хэргийг шалгаж шийдвэрлэх механизмыг холбогдох хуульд тодорхой заах; Тухайлбал эмч, аптекийн ажилтан, бариач, уламжлалт болон бусад бүх төрлийн эмчилгээ эрхэлдэг ажилтнууд, эмнэл зүйн ажилтнууд, сэтгэл зүйч, өмгөөлөгч, хуульч, татварын зөвлөх, нягтлан бодогч, банк, санхүү байгууллага ажилтан, гэр бүлийн хосууд, хүүхэд, залуучуудад зөвлөгөө өгөх ажилтан, жирэмсэн эсэх талаар ажил үүргийн дагуу мэдээлэл авсан этгээд, бүх нийгмийн ажилтан, даатгалын ажилтан г.м ажил үүргийн дагуу мэдээлэл цуглуулсан, өгөгдлийн сан үүсгэсэн этгээд мэдээллийг хадгалах, хамгаалах үүргээ биелүүлэхгүй бол хүлээлгэх хариуцлагыг тодорхойлох; Түүнчлэн бусад төрлийн мэдээлэл хариуцагч, боловсруулагч, ажил үүргийн дагуу олж авсан, танилцсан мэдээллийг бусдад зөвшөөрөлгүй дамжуулсан болон хувь хүн бусдын хувийн нууц мэдээллийг түгээсэн, тараасан тохиолдолд хүлээлгэх хариуцлагыг тодорхойлох;

10. Хуулийн төсөлд гамшгийн нөхцөлд тухайлбал өндөржүүлсэн болон бүх нийтийн бэлэн байдал зарласан үед хувийн мэдээллийг хэрхэн ашиглах талаарх зохицуулалт нэмж тусгах; Үүнд иргэний үнэмлэхний “QR” код, царай таних технологи, “e-barimt” аппликэйшн, ковидын шинжилгээний гэрэгэ системс сан зэрэг гамшиг, цар тахал, халдварт өвчин зэрэгтэй тэмцэхийн тулд хувийн өгөгдлийн баазыг хэн бүрдүүлэх эрхтэй байх, өгөгдлийн санг хамгаалах, өөр зориулалтаар ашиглах эсэх, хадгалах, хянах, тодорхой гамшгийн нөхцөл дууссаны дараа шилжүүлэх, буюу устгах г.м асуудлыг зохицуулах; Үүнтэй уялдуулан дагалдах хуулийн төслүүдэд Гамшгийн тухай хуульд нэмэлт, өөрчлөлт оруулах;

11. Аливаа урамшуулал, үйлчилгээ үзүүлэхдээ тухайн иргэнээс шаардлагагүй хувийн мэдээллийг шаарддаггүй байх, тодруулбал ямар мэдээллийг авч болох, авах ёсгүй байх зааг ялгааг тодорхойлох нь чухал байна. Тухайлбал банкны данс нээлгэхэд гэр бүлийн гишүүдийн бүх мэдээлэл түүнчлэн хөнгөлөлтийн карт нээхэд нэр, гэрийн хаяг, утасны дугаар, регистрийн дугаар зэргийг шаарддаг. Ялангуяа регистрийн дугаар нь уг үйлчилгээг үзүүлэхэд гарцаагүй шаардлагатай мэдээлэл биш юм. Иймд хуулийн төсөлд хувийн хэвшлийн аж ахуйн нэгж, байгууллага хувийн мэдээлэл цуглуулж байгаа бол байгууллагынхаа нууцын бодлогоо заавал танилцуулдаг байх, энэхүү нууцын бодлогод ямар асуудал тусгагдах агуулгыг тодорхойлж заах;

12. Хувийн нууцын мэдээллийг зөвшөөрөлгүй цуглуулж, дамжуулсан, нийтэд түгээсэн талаарх гомдол, мэдээллийг шалгах хугацаанд уг агуулгыг олон нийтэд түгээхгүй, дамжуулахгүй хаах буюу түр хугацаанд түдгэлзүүлэх зохицуулалтыг нэмж тусгах;

13. Жүжигчид, уран бүтээлчид, улс төрчид зэрэг олны танил хүмүүсийн нийтийн үйлчилгээ, нийтийн эзэмшлийн газарт авахуулсан зургийг шууд хувийн мэдээллийг хамгаалах эсэх асуудлыг судалж шийдвэрлэх;

МОНГОЛ УЛСЫН ХҮНИЙ ЭРХИЙН ҮНДЭСНИЙ КОМИСС

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PART 7 — AMENDMENT AND ANNOTATION OF PERSONAL RECORDS

Version 1.4, January 2018

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PART 7 – AMENDMENT AND ANNOTATION OF PERSONAL RECORDS

7.1 The FOI Act and the Privacy Act both generally allow individuals to seek access to their personal information and to have that information corrected or annotated. Part V of the FOI Act gives individuals the right to apply to an agency or minister to amend or annotate an incorrect record of their personal information kept by the agency or minister. The Australian Privacy Principles (APPs) in the Privacy Act give individuals the right to request an agency[1] to correct, or associate a statement with, their personal information held by the agency. An agency is also required by the APPs, independently of any request from an individual, to take reasonable steps to ensure that the personal information it holds is correct.

7.2 The amendment and annotation provisions in the FOI Act and Privacy Act coexist but operate independently of one another. Agencies are not required to advise individuals to proceed with an amendment request under the FOI Act rather than the Privacy Act. However, the FOI Act procedures, criteria and review mechanisms differ in important respects from those that apply under the APPs. Those differences are considered below at [7.6]–[7.8].

7.3 Neither the FOI Act nor the Privacy Act prevent an agency from correcting personal information under an informal administrative arrangement, provided the arrangement satisfies the minimum requirements of the Privacy Act.[2] For example, an agency may allow individuals to correct their personal information through an online portal.

Amendment and annotation of personal records under the FOI Act and Privacy Act

7.4 A fundamental principle of information privacy is that individuals are entitled to have access to their own personal information held by agencies, except where the law provides otherwise (APP 12 in the Privacy Act). Agencies must also take reasonable steps to correct personal information to ensure that, having regard to the purpose for which it is held, it is accurate, up-to-date, complete, relevant and not misleading (APP 13 in the Privacy Act). Agencies are expected to take all reasonable steps to ensure compliance. If an agency fails to comply with either APP 12 or APP 13, an individual may complain to the Information Commissioner under the Privacy Act.

7.5 The FOI Act provides a complementary procedure that gives individuals a legally enforceable right of access to documents (under Part III) and the right to request correction or update (Part V) of their personal information in agency records or the official documents of a minister. Part V enables records that are incomplete, incorrect, out of date or misleading to be amended on application by the affected person. An applicant may also ask for the record to be annotated to include a statement explaining their objection to the record of their personal information and the reasons for their objection (s 51).

Comparison of FOI Act procedures and APP 13

7.6 Part V of the FOI Act operates alongside the right to amend or annotate personal

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1 In the Privacy Act 'agency' includes a minister.

2 For more information about APP 13 minimum procedural requirements, see Chapter 13 of the Information Commissioner's APP Guidelines at www.oaic.gov.au.

the FOI Act. For more information about the operation of APP 13, see the APP Guidelines, Chapter 13.

Records that may be amended or annotated

7.12 A request for amendment or annotation of a record of personal information in a document under s 48 must meet all of the following criteria[5]:

- the document must be a document of an agency or an official document of a minister containing personal information about the applicant
- the document must be one to which the applicant has already been lawfully provided access, whether as a result of an access request under the FOI Act or otherwise
- the personal information in the document must be incomplete, incorrect, out of date or misleading
- the personal information has been used, is being used or is available for use by the agency or minister for an administrative purpose.

Applies only to personal information

7.13 The right to request amendment or annotation only extends to the applicant's personal information within the document.[6] For example, a person cannot apply for correction or annotation of a policy document that contains no personal information about them.

7.14 An application for correction or annotation differs from the usual scheme of the FOI Act in that it is concerned with records of personal information about the applicant contained in documents, rather than the documents as such. A request for amendment or annotation extends to any record of personal information about the applicant that the agency or minister holds, if the information is used or is available for use for an administrative purpose (s 48(b)). For example, an applicant may claim that an agency document wrongly records their date of birth. The right to have that personal information about the applicant corrected extends to all active records of the applicant's date of birth that the agency has kept for administrative purposes.

7.15 The personal information must be:

- information (such as date of birth or residential address), or
- an opinion (such as a medical opinion)

about an identified individual, or an individual who is reasonably identifiable (s 4(1) of the FOI

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5 See Agency Resource 3 'Processing requests for amendment or annotation of personal records' for further guidance.

6 See *'EG' and Department of Human Services* [2014] AICmr 149 [16]-[20] where the Information Commissioner found that information about the costs borne by the applicant in negotiations and dispute with the Child Support Agency was the applicant's personal information despite the Department's submissions to the contrary. In *Grass and Secretary, Department of Immigration and Border Protection* [2014] AATA 751 [26]-[28], [30]-[31] Britton SM found that information that could be described as an expression of opinion about the manner in which an officer of the Department handled the FOI applicant's citizenship application was not personal information. Accordingly, the power to amend those records could not be exercised.

information that are no longer current.[7] An applicant may request that more recent information be inserted into the record as their circumstances change. For example, an applicant may request amendment of a statement that the applicant lacks a particular qualification or accreditation that they have subsequently obtained.

7.23 Personal information about a past event may have been accurate at the time it was recorded, but have been overtaken by a later development.[8] Whether that information is out of date will depend on the purpose for which it is held. If point in time information from the past is required for the particular purpose, the information will not be out of date for that purpose. In these circumstances, an agency or minister must still ensure that the information is complete and not misleading.

Amendment of recorded opinions

7.24 An agency or minister should be careful where a request for amendment relates to a document containing advice, recommendations or opinions of a third party (including a group). Such records should be amended only if the information is incorrect or incomplete, or if the author was shown to be biased or unqualified to form the opinion or to have acted improperly, or if there is some other clear impropriety in the formation of the opinion. The applicant's disagreement with the opinion is not a sufficient reason to amend the record.[9] This approach is consistent with the limitations on the Information Commissioner's power to direct amendments of records in s 55M of the FOI Act (see Part 10 of these Guidelines). The agency or minister should consider consulting the person who provided the advice, opinion or recommendation before amending it.

Amendment or annotation contingent on prior access

7.25 A person only has a right to seek amendment or annotation under the FOI Act if they have lawfully been provided with access to the document(s) in question (s 48). Lawful access includes access:

- granted under Part III of the FOI Act
- provided under an agency's general discretion to allow access to its documents
- required or permitted under any other law of the Commonwealth.

By contrast, a person does not need to have had access to a record of personal information to seek correction under the Privacy Act (APP 13).

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7 In *Grass and Secretary, Department of Immigration and Border Protection* [2014] AATA 751 [46]-[49], Britton SM considered the applicant's request to amend a document recording a decision by the Migration Review Tribunal on the basis that this decision did not accord with an FOI decision and was therefore 'out of date'. Britton SM indicated that where a decision-maker reaches a different finding to an earlier decision-maker, this does not render the earlier decision 'out of date' and the issue was not whether the finding by the Migration Review Tribunal was 'correct' but whether the statement correctly recorded the finding by the Migration Review Tribunal.

8 In *Grass and Secretary, Department of Immigration and Border Protection* [2014] AATA 751 [52]-[56], Britton SM found that it would be open to exercise the power to amend file covers and an internal email that recorded an asserted date of birth that was found to be incorrect. Britton SM did not agree with the Secretary's argument that the information must be read in context and these documents were correct factual records of an historical event or historical data based on information provided at that time.

9 See *Grass and Secretary, Department of Immigration and Border Protection* [2014] AATA 751 [39]-[44] per Britton SM.

- specify as far as practicable the document(s) which require(s) annotation
- be accompanied by a statement which specifies:
    - the information that is claimed to be incomplete, incorrect, out of date or misleading and whether it is claimed to be incomplete, incorrect, out of date or misleading
    - the applicant's reasons for so claiming
    - any other information that would make the information complete, correct, up to date or not misleading.

7.33 The express obligation on agencies in s 15(3) to help applicants to make a request that complies with the FOI Act applies only to access requests. There is no corresponding provision applying to requests for amendment or annotation. Nevertheless, it is good administrative practice for agencies to treat those requests in the same way. Adopting an informal approach, for example by discussing matters with applicants by telephone, can help to resolve problems and minimise delay in making a decision.

Making amendment decisions

7.34 When assessing whether the information in the document is incomplete, incorrect, out of date or misleading, a decision maker should consider:

- the nature of the information the applicant seeks to amend
- the evidence on which the decision is to be based, including the circumstances in which the original information was provided
- the consequences of amendment, where relevant.

7.35 An agency should apply its own procedures to satisfy itself of the person's identity before deciding whether to amend the record. Agencies should only seek the minimum amount of personal information required to establish the person's identity.

The evidence on which a decision should be based

7.36 As noted above at [7.31]–[7.32], an applicant must give particulars of the amendments being requested and the reasons for their request (ss 49 and 51A).

7.37 A decision to amend a record must be supported by a finding that the record is incorrect, incomplete, out of date or misleading (s 50). This requires a decision maker to undertake a reasonable investigation and to assess the available evidence. If an applicant does not provide evidence in support of their claim, an agency would be justified in refusing to amend the record. However, before refusing a request, a decision maker should give the applicant an opportunity to provide further evidence to substantiate their claims. For example, if the applicant claims that the information is out of date, the decision maker should ask the applicant for evidence of the current position.

7.38 The material that an applicant needs to provide to support their claim will vary according to each case. If an applicant can produce a document that supports the request, they should do so. An agency should also search its own records or other sources to find any evidence supporting an applicant's claims. The applicant's opinion is not determinative; it is for the agency to be reasonably satisfied that the applicant's claims are correct.

should consider the circumstances in which the information was first provided.[13] This is particularly important where the applicant has no documents to support their application for amendment other than a statutory declaration stating their case. For example, incorrect information may have been placed in a record because the applicant or others (such as parents or relatives) misunderstood the questions they were asked, or made an error in supplying the information.[14] Alternatively, the person collecting the information may have made a mistake, such as an error in translation, miscalculation of a date of birth or misspelling of a name.

7.47 In such cases, an amendment may be appropriate even if the alternative information is not supported by reliable documentation. This is because the information that is being amended is no more reliable than the information that replaces it.[15] However, an agency must first make a finding as to the correctness of the information it has on record. The threshold question is not which piece of information is more reliable but whether the currently recorded information is incorrect.[16]

Authenticity of documents

7.48 It can be difficult to establish the authenticity of documents provided in support of an application for an amendment. While it may be unrealistic to insist on presentation of originals, an agency may give less weight to a copy, particularly where the authenticity of the original document is in question.[17] Factors an agency or minister may wish to consider when weighing evidentiary documents include:

- whether a copy of a document has been certified and the identity and reliability of the certifier[18]
- whether a document is based on information reported by the applicant (self-reported information)[19]

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13 For example, in *'CI' and Department of Immigration and Border Protection* [2014] AICmr 79 [50]-[56] and [72,] the Information Commissioner took into account the fact that while the applicant had initially reported the recorded date of birth, this was during the resettlement process and found that it was not improbable that a person would be unwilling to correct it until after the resettlement process was complete in order to avoid any delays. The Information Commissioner took this approach again in *'NA' and Department of Immigration and Border Protection* [2017] AICmr 112 [79] and stated that he had previously accepted that individuals may be reluctant to amend records of personal information during the resettlement process for fear of delaying the process.

14 In *'FD' and Department of Immigration and Border Protection* [2015] AICmr 22 [43], the Information Commissioner accepted the applicant's explanation that he did not know his date of birth and chose the recorded year of birth because he was told he looked young. Nonetheless, in that matter the Information Commissioner found that the Department's record of the applicant's year of birth was not incorrect. In *'NA' and Department of Immigration and Border Protection* [2017] AICmr 112 [57], the Information Commissioner accepted as plausible the applicant's explanation that the Department's record was incorrect because the relatives who prepared his migration application may have estimated his date of birth in the absence of documentary evidence or information from his parents at that time.

15 See *'K' and Department of Immigration and Citizenship* [2012] AICmr 20 [41].

16 See *'NA' and Department of Immigration and Border Protection* [2017] AICmr 112 [86] – [88]; *'N' and Department of Immigration and Citizenship* [2012] AICmr 26 [21].

17 See *'O' and Department of Immigration and Citizenship* [2012] AICmr 27 [16].

18 See *'T' and Department of Immigration and Citizenship* [2012] AICmr 35 [13], *'IE' and Department of Immigration and Border Protection* [2016] AICmr 12 [22].

19 See *'AU' and Department of Immigration and Border Protection* [2013] AICmr 90 [14], [22], *'CU' and*

information in the record is incorrect, it should amend the record in accordance with the applicant's request if:

- the amendment proposed by the applicant is more likely to be correct than the information currently recorded, and
- there is no other amendment that is more likely to be correct.[28]

7.51 It is open to an agency or minister to amend a record, under s 50, in a way that is different to the amendment proposed by the applicant, provided it is more likely to be correct than any other amendment option. For example, an agency may determine that an applicant's recorded date of birth is incorrect but be unable to determine with certainty that the new date proposed by the applicant is correct.[29] In this case, the agency should record the closest possible approximation of the correct date, whether this is the date proposed by the applicant, or another date that the agency believes, on reasonable grounds, is closer to the correct date. If the exact date of a person's birth cannot be established with certainty, a key consideration should be consistency of dates across the records held by multiple government agencies.[30]

Consequences of amendment

7.52 Once it is determined that a record of personal information is incorrect and there is information that is more likely to be correct, the decision maker should take into consideration the consequences of the amendment being made and the amendment not being made.[31]

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that in the IC review the onus is on the Department to demonstrate that the date of birth it has recorded is not incorrect or that it should not be amended. Where the Department is unable to establish, on the balance of probabilities, that the recorded date is 'correct', then the Department bears the onus of establishing that the incorrect date in its records should not be amended. The Information Commissioner disagreed with the approach taken by the AAT in *HFNB; Secretary, Department of Immigration and Border Protection (Freedom of information)* [2017] AATA 870. In that case the Member, Dr Gordon Hughes, found that the date of birth recorded was incorrect but that the proposed date of birth was not 'correct'. His view was that there is no power under the FOI Act to amend records of personal information to make information 'closer to correct' or 'more likely to be correct' ([30] – [34]). However in *'NA'* the Information Commissioner considered that the approach in *HFNB* shifts the burden of onus from the agency to the applicant in the external review processes, and this is inconsistent with ss 55D(1) and 61(1) of the FOI Act ([24]).

28 See *'K' and Department of Immigration and Citizenship* [2012] AICmr 20 [39].

29 See for instance *'JP' and Department of Immigration and Border Protection* [2016] AICmr 65 [47]-[49], where the Information Commissioner found that there was little reliable evidence to support either date of birth, but given the consistency with which the applicant had reported the date of birth he was seeking, the Information Commissioner found that that was more likely to be closer to the correct date of birth than the date on record. This decision was set aside by the AAT in *HFNB; Secretary, Department of Immigration and Border Protection (Freedom of information)* [2017] AATA 870. However, the Information Commissioner respectfully maintains that this approach, originally explained in *'K' and Department of Immigration and Citizenship* [2012] AICmr 20 and adopted in *'JP'* and *'NA' and Department of Immigration and Border Protection* [2017] AICmr 112 is consistent with the operation of s 50.

30 See *'AM' and Department of Immigration and Border Protection* [2013] AICmr 73 [21].

31 See *'IE' and Department of Immigration and Border Protection* [2016] AICmr 12 [41]-[42]. In *'IE' and Department of Immigration and Border Protection* [2016] AICmr 12, the applicant applied for his date of birth to be amended. The Department recorded the applicant's date of birth as 16 years of age at the time. On the basis of the applicant's contended date of birth, the applicant was 13 years of age at the time. The Information Commissioner took into account the applicant's mother's submissions that the applicant

- the reasons for refusal
- information about the applicant's review rights, and
- information about the right to complain to the Information Commissioner about how the request was handled (s 26 as applied by s 51D(3)).

7.57 The agency or minister has the onus of justifying the decision on review by the Information Commissioner (s 55D(1)). The agency or minister need not prove the information was correct, but must establish that the Commissioner should affirm the decision or give a decision that is adverse to the applicant.

Implementing amendment decisions

7.58 The FOI Act does not specify how records are to be amended. Each agency can therefore adopt the procedure best suited to its record keeping practices.

7.59 Where an agency or minister decides to amend a record in response to a request, all relevant active records must be amended in whatever form those records are kept. It may be that only a central record, such as a database containing client details, need be amended rather than all related records. The records may be amended by correcting or updating them or by adding new information to make the record complete.

7.60 Care must be taken, however, to preserve the integrity of the record. Agencies and ministers should remember that the information being amended still has value as an historical record, and therefore should be retained as far as possible. Section 50(3) requires an agency or minister when making an amendment to ensure, as far as practicable, that the amendment does not obliterate the text of the record, as it originally existed. Removing or destroying part of a record would prejudice the record's integrity as an account of the information originally supplied. Such a record may still be necessary to explain an action taken on the basis of the original information. If this is not possible, the agency should keep a careful account of any changes made, cross-referencing to the file or database that contains the record of the amendment decision.

Amending paper records

7.61 Information on a paper document could be corrected by:

- ruling through the incorrect information
- writing the correct information next to, above or below the incorrect information
- inclusion of explanatory words such as: 'Amended on (insert date) under s 50 of the FOI Act'
- inclusion of cross-references to the amendment by adding the words 'see folio (x) of file (x)', and
- pre-printed stickers with the appropriate wording if there are a large number of amendments.

7.62 Additional or updated information can be recorded in a similar way with the words: 'Additional information provided under s 48 of the FOI Act on [insert date]' or 'updated under the FOI Act on [insert date]'. The date of amendment must always be recorded. The notation could refer to s 51 (where a prior application for amendment was unsuccessful) or

containing the information claimed by the applicant to be incorrect.

7.72 Agencies are encouraged to ensure that the existence of an annotation is clearly displayed on the cover of the applicant's active paper files and flagged against all relevant electronic files such as through a central customer database. This will assist future users of the records by drawing their attention to the information the applicant has supplied.

Other procedural matters

Transfer of amendment or annotation applications

7.73 An agency or minister may transfer an amendment or annotation application to another agency or minister who holds the documents requiring amendment or annotation or where the relevant documents contain subject matter which is more closely related to the other agency's or minister's functions (s 51C(1)).

7.74 The receiving agency or minister must agree to accept the transfer before it can take place — and, as a general rule, can be expected to agree to a transfer, unless there are exceptional circumstances. For further information on transfers see Part 3 of these Guidelines.

Mandatory transfer of documents from exempt agencies

7.75 Certain requests for amendment or annotation of personal information must be transferred as follows.

Table 1: Transfer requirements for documents originating with or received from an agency listed in Schedule 2

Document originated with...	**and the document is more closely connected with...**	**the document must be transferred to...**
an exempt agency listed in Division 1, Part I, Schedule 2 (eg, Auditor-General, Australian Secret Intelligence Service)	the functions of the exempt agency	the responsible portfolio department (s 51C(2)(c)).
an exempt agency that is a part of the Department of Defence listed in Division 2, Part I, Schedule 2 (eg, Australian Signals Directorate)	the functions of the exempt agency	the Department of Defence (s 51C(2)(d)).

an agreement with an applicant on an access request under s 15AA). The applicant is entitled to treat the agency's failure to decide within the 30 days as a deemed refusal under ss 51DA(1)–(2) and to apply for review by the Commissioner (see Part 10 of these Guidelines). However, the applicant's prior agreement is a factor that the Commissioner would take into account in deciding whether to give the agency an extension of time under s 51DA(3).

7.82 An agency should not normally seek an applicant's agreement to an extension of time longer than 30 days. If the agency believes a longer extension will be needed, it would be more appropriate to apply for an extension under s 51DA(3). The Commissioner may grant a period of extension that the Commissioner considers appropriate (s 51DA(4)). The Commissioner may also impose any conditions the Commissioner considers appropriate (s 51DA(5)). If the agency or minister fails to make a decision within the extended period or to comply with a condition, the decision is treated as a deemed refusal at the end of the extended period (s 51DA(7)).

7.83 All references to 'days' in Part V of the FOI Act are to calendar days, not business (working) days. The processing time starts from the day after the agency or minister receives the request. The following table sets out the time of receipt.

Table 2: Time of receipt of the application by the agency based on mode of delivery

Mode of delivery	**Time of receipt (processing period commences on following day)**
Pre-paid post to a specified address of the agency or minister	The time at which the letter would be delivered in the ordinary course of post[34]
Delivery to a central or regional office	The date of delivery
Electronic communication to a specified email or fax address	The date the communication is capable of being retrieved by the agency at the specified email or fax address.[35]

7.84 As noted above at [7.79]–[7.80], an agency or minister can seek an extension of time from the Information Commissioner if the initial 30-day period has expired (s 51DA(3)). In deciding whether to allow an extension of processing time, the Commissioner will take into account any non-working days falling within the original period.

7.85 Processing a request for amendment can take a considerable period of time if the material is complex or the authenticity of claims or evidence needs to be verified. If it appears that more than 30 days may be necessary, the agency or minister should

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34 *Acts Interpretation Act 1901* s 29.

35 The time of receipt of electronic communications derives from s 14A of the Electronic Transactions Act 1999, which provides that an email or similar electronic communication is received at the time it is capable of being retrieved by the addressee. This is assumed to be the time it reaches the addressee's designated electronic address (this day could be a weekend or public holiday). This rule may be varied by a voluntary and informed agreement between the sender (the applicant) and the addressee (the agency or minister).

rights include internal review and IC review. A complaint can also be made to the Information Commissioner about the handling of a request.

7.93 Further guidance on the review and complaint processes, including AAT review of IC review decisions, is in Parts 9, 10 and 11 of these Guidelines.

7.94 A person may also complain to the Information Commissioner under the Privacy Act.[36]

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36 The Privacy Act sets out a number of Australian Privacy Principles. In general, where an organisation breaches one of the principles, the individual can complain. APP 10 concerns the quality of personal information. APP 10.1 provides that 'An APP entity must take such steps as are reasonably necessary in the circumstances to ensure that the personal information that it collects is accurate, up-to-date and complete' and APP 10.2 provides that 'An APP entity must take such steps (if any) as are reasonable in the circumstances to ensure that the personal information that the entity uses or discloses is, having regard to the purpose of the use or disclosure, accurate, up-to-date, complete and relevant'. A person may complain to the Information Commissioner about a breach of APP 10.1 or 10.2.